

FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES
State of Oklahoma

SPEAKER:

CHAIR:

I move to amend HB3151 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Adopted: _____

Reading Clerk

Amendment submitted by: Kyle Hilbert

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR

HOUSE BILL NO. 3151

By: Hall, Newton, Caldwell
(Chad), and Moore of the
House

and

Paxton of the Senate

FLOOR SUBSTITUTE

An Act relating to schools; amending 70 O.S. 2021, Section 1-109, as last amended by Section 1, Chapter 480, O.S.L. 2025 (70 O.S. Supp. 2025, Section 1-109), which relates to the length of the school year; increasing minimum days of instruction for schools with a school-hours policy beginning in certain school year; requiring parent-teacher conferences to have an in-person option; updating reference; and providing an effective date contingent upon certain condition.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 1-109, as last amended by Section 1, Chapter 480, O.S.L. 2025 (70 O.S. Supp. 2025, Section 1-109), is amended to read as follows:

Section 1-109. A. For all public schools in this state, school shall actually be in session and classroom instruction offered:

1. For not less than one hundred eighty-one (181) days;

2. For not less than one thousand eighty-six (1,086) hours each school year, if a district board of education adopts a school-hours policy and notifies the State Board of Education prior to October 15 of the applicable school year;

3. Beginning with the ~~2025-2026~~ 2027-2028 school year, for not less than one thousand eighty-six (1,086) hours with a minimum of one hundred ~~sixty-six (166)~~ seventy-three (173) days of instruction each school year, if a district board of education adopts a school-hours policy and notifies the State Board of Education prior to October 15 of the applicable school year; or

4. Beginning with the 2025-2026 school year, for not less than one thousand eighty-six (1,086) hours each school year, if a district board of education adopts a school-hours policy, notifies the State Board of Education prior to October 15 of the applicable school year, and meets the requirements established by the State Board of Education pursuant to subsection H of this section.

B. A school district may not count more than thirty (30) hours each school year that are used for attendance of professional meetings toward the one hundred eighty-one (181) days or one thousand eighty-six (1,086) hours of classroom instruction time required in subsection A of this section.

C. Teachers off contract with an employing district shall not be required by the employing school district to attend professional meetings unless the teacher is paid additional compensation for the

1 additional time. Teachers may be paid additional compensation for
2 attending professional meetings in excess of their contract term.
3 Subject to district board of education policy or collective
4 bargaining agreement, additional paid professional days may be
5 granted for individual teachers to attend or participate in
6 professional meetings, staff development training, or National Board
7 certification portfolio development as provided for in Section 6-
8 204.2 of this title.

9 D. A school district may authorize parent-teacher conferences
10 to be held during a regular school day. If authorized by the school
11 district, parent-teacher conferences shall be counted as classroom
12 instruction time for no more than six (6) hours per semester, for a
13 total of twelve (12) hours per school year and shall provide an in-
14 person meeting option for parents and legal guardians.

15 E. A school district may maintain school for less than a full
16 school year only when conditions beyond the control of school
17 authorities make the maintenance of the term impossible and the
18 State Board of Education has been apprised and has expressed
19 concurrence in writing.

20 F. The State Board of Education shall establish criteria for an
21 extended-day schedule for schools subject to paragraph 1 of
22 subsection A of this section. The criteria shall:

23 1. Prescribe a lengthened school day within limits determined
24 not to be detrimental to quality instruction;

1 2. Ensure that the schedule is equivalent in annual hours of
2 instruction to the one-hundred-eighty-one-day school year specified
3 in paragraph 1 of subsection A of this section; and

4 3. Be consistent with the provisions of this section and
5 Sections 1-111 and 1-112 of this title but may result in fewer
6 annual days of instruction.

7 G. Notwithstanding the provisions of subsection F of this
8 section, a school district board of education subject to paragraph 1
9 of subsection A of this section may adopt and implement an extended-
10 day schedule subject to the following requirements:

11 1. The annual number of hours of instruction shall equal or
12 exceed one thousand eighty-six (1,086) hours, which is the
13 equivalent of one hundred eighty-one (181) days of instruction as
14 specified in subsection A of this section for six (6) hours each day
15 as specified in Section 1-111 of this title;

16 2. The annual number of days of instruction shall equal or
17 exceed one hundred eighty-one (181) days as specified in subsection
18 A of this section;

19 3. The schedule adopted shall be consistent with the provisions
20 of Sections 1-111 and 1-112 of this title, except that for not more
21 than one (1) day per week, a school day shall consist of not less
22 than five (5) hours devoted to academic instruction in a regular
23 classroom setting;

1 4. The district shall hold a public hearing prior to the
2 adoption of an extended-day schedule authorized pursuant to this
3 subsection; and

4 5. The district shall document the impact on student
5 achievement as determined by the academic performance data score and
6 any other relevant factors that are a result of implementation of an
7 extended-day schedule authorized pursuant to this subsection and
8 provide an annual report to the State Board of Education of the
9 results. If improvement in student achievement cannot be documented
10 in the report, the district board of education shall revoke
11 authorization as provided by this subsection. If the district board
12 of education does not revoke authorization after student achievement
13 is not documented in the report, the State Board of Education may
14 deny accreditation of any school in violation of this subsection.

15 H. Beginning with the 2021-2022 school year, a school district
16 board of education may adopt a school-hours policy as provided for
17 by paragraph 4 of subsection A of this section only if it meets or
18 exceeds the minimum guidelines for student performance and school
19 district cost savings established by the State Board of Education.
20 The State Board of Education shall promulgate rules, subject to
21 approval by the Legislature, establishing the minimum guidelines for
22 student performance and school district cost savings.

23 I. If subject to ~~paragraph~~ paragraphs 2 or 3 of subsection A of
24 this section, a district board of education or designee may elect to

1 close a school during the school day for inclement weather purposes.
2 In such an event, the number of hours incurred in classroom
3 instruction time prior to school closure shall be counted toward the
4 one thousand eighty-six (1,086) hours per year requirement.

5 J. 1. Except as provided for in paragraph 2 of this
6 subsection, beginning with the 2026-2027 school year a school
7 district or charter school shall not count days or portions of days
8 when school is closed and virtual instruction is provided toward the
9 one hundred eighty-one (181) days or one thousand eighty-six (1,086)
10 hours of classroom instruction time required by subsection A of this
11 section. For the purposes of this subsection, "virtual instruction"
12 means the use of the Internet or other digital information
13 transmission systems as a form of instruction.

14 2. Beginning with the 2026-2027 school year, a school district
15 or charter school may count up to two (2) days or twelve (12) hours
16 when school is closed and virtual instruction is provided toward the
17 one hundred eighty-one (181) days or one thousand eighty-six (1,086)
18 hours of classroom instruction time required by subsection A of this
19 section only if:

20 a. the Superintendent of Public Instruction has approved
21 the virtual instruction plan submitted by a school
22 district board of education or charter school
23 governing board. A school district board of education
24 or charter school governing board shall approve its

1 virtual instruction plan, publish the plan on the
2 website for the school district or charter school, and
3 submit it to the Superintendent of Public Instruction
4 by November 1, 2025. The Superintendent shall approve
5 or disapprove all submitted virtual instruction plans
6 by January 31, 2026. A school district board of
7 education or charter school governing board shall
8 review its virtual instruction plan annually and
9 approve any necessary revisions for submission to the
10 Superintendent of Public Instruction by November 1
11 each subsequent year, and the Superintendent shall
12 approve or disapprove submitted plans by January 31
13 each subsequent year. If a plan is disapproved, the
14 school district board of education or charter school
15 governing board may approve a revised plan, publish it
16 on the website for the school district or charter
17 school, and submit it to the Superintendent. The plan
18 shall include a virtual needs assessment which shall
19 address availability of technology infrastructure to
20 deliver virtual instruction. The plan shall also
21 address how the school district or charter school
22 plans to provide:

23 (1) instruction to students on an Individualized
24 Education Program (IEP),

1 (2) child nutrition services, and

2 (3) transportation for students enrolled in

3 technology center school courses or programs,

4 b. a state of emergency or proclamation has been issued

5 by the Governor for a specific reason relating to

6 school district or charter school operations, and

7 c. the school district board of education or charter

8 school governing board approves the use of virtual

9 instruction.

10 3. The provisions of this subsection shall not apply to

11 statewide virtual charter schools or full-time virtual education

12 programs operated by a school district.

13 K. By June 30, 2027, and by June 30 each subsequent year, the

14 State Department of Education shall publish on its website and

15 electronically submit to the Governor, the President Pro Tempore of

16 the Senate, and the Speaker of the House of Representatives a report

17 with information regarding the use of virtual instruction as

18 authorized by subsection J of this section. The report shall

19 include, at a minimum:

20 1. The school districts and charter schools that closed school

21 and provided virtual instruction as authorized by subsection J of

22 this section and the length of time virtual instruction was

23 provided; and

1 2. The reason for which school was closed and virtual
2 instruction was provided.

3 L. Nothing in this section shall be construed as affecting the
4 right of an employing school district to require teachers as defined
5 in Section 6-101.3 of this title to work in excess of the one
6 thousand eighty-six (1,086) hours required for student instruction.
7 In addition, nothing in this section shall be construed to affect
8 the Fair Labor Standards Act of 1938 status of any school district
9 employee.

10 M. The provisions of this section shall not prohibit the
11 Oklahoma School for the Blind or the Oklahoma School for the Deaf
12 from adopting an alternative school-hours policy if the Oklahoma
13 School for the Blind or the Oklahoma School for the Deaf notifies
14 and receives approval from the State Board of Education prior to
15 October 15 of the applicable school year.

16 SECTION 2. If the total appropriations amount to the State
17 Department of Education for the fiscal year ending June 30, 2028, is
18 at least One Hundred Seventy-five Million Dollars (\$175,000,000.00)
19 greater than the total appropriations amount to the State Department
20 of Education for the fiscal year ending June 30, 2026, this act
21 shall become effective July 1, 2027, but shall not become effective
22 as law unless the condition prescribed by this section is fulfilled.

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